

CV-24-006618 CATT, TODD MICHAEL vs RENTERIA, MARCOS, Jr – a) Defendant's Motion for Protective Order to Stay Discovery Pending Determination on Defendants' Motion to Strike Doe Amendments and Motion to Quash Deposition Notice -MOOT. b) Defendant's Motion to Strike Amendments to Complaint Based on Lack of Good Faith, Abuse of Process, and Collusive Misrepresentation – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: As determination of the motion is being made, the matter is moot. Each side cites cases at the demurrer or summary judgment stage, which we are not at. Plaintiff argues that these were the facts as he understood them at the time he filed his complaint: Stanislaus Animal Services investigated on the day of Plaintiff's accident. According to the officer's report, Ms. Renteria claimed ownership of the two dogs that were killed as a result of the collision. Mr. Renteria then joined the discussion and contended the dogs were strays. The animal control officer issued two citations to Mr. Renteria, and the third dog, which was injured, was recovered from the Renterias' property. The injured dog appeared to be related to the other two dogs that were killed. On these facts, Plaintiff filed suit against the Renterias. (See Pl.'s Opp., at pp. 3-4.) It was only at Plaintiff's deposition on April 13, 2026, that Plaintiff became aware of a possible dog breeding farm across the street from the Renterias. Thereafter, Plaintiff acted promptly to amend his complaint. (See Pl.'s Opp., at pp. 5-6.) Plaintiff had sent an evidence preservation letter to "Windy Hill Farm" on January 23, 2024, and a follow-up letter to "Gerald Mansager" and "Windy Hill Doodles" on February 15, 2024, and asserted there may be some liability for Windy Hill Doodles if it did not preserve documents. Whether this was a pro forma effort at preservation or based on some actual theory of liability is unclear. Plaintiff makes a sufficient facial showing to permit amendment. The Court makes no findings at this time as to a potential demurrer or motion for summary judgment. The same logic applies to the Renteria's cross-complaint. The question here is not whether the amendment will survive further scrutiny, but whether it was void ab initio. Based on Plaintiff's claims, it was not.

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